

Tab 28



Board of Education Report

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Approval of Minutes

September 12, 2023, Regular Board Meeting Minutes

September 26, 2023, Regular Board Meeting Minutes

**BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District**

REGULAR MEETING MINUTES

333 South Beaudry Avenue, Board Room

1:00 p.m., Tuesday, September 12, 2023

The Los Angeles Board of Education acting as the Governing Board of the Los Angeles Unified School District met in regular session on Tuesday, September 12, 2023, at the Administrative Offices, Board Room, 333 South Beaudry Avenue, Los Angeles, California.

Mr. Michael McLean, Executive Officer of the Board, called the meeting to order at 1:41 p.m.

The following Board Members were present: Dr. Rocio Rivas, Mr. Scott Schmerelson, Mr. Nick Melvoin, Ms. Kelly Gonez, Ms. Tanya Ortiz Franklin, and Board President Jackie Goldberg.

Dr. George J. McKenna, III, arrived at 1:56 p.m.

Student Board Member Karen Ramirez was present.

Superintendent Alberto M. Carvalho was also present.

The pledge of Allegiance was led by students from 24th Street Elementary School, Board District 1.

Ms. Goldberg asked for a moment of silence in memory of those who lost their lives in the Morocco earthquake and the September 11, 2001 attacks.

BOARD PRESIDENT'S REPORTS

STUDENT VOICES

In honor of Latino Heritage Month, a performance was made by Mariachi Los Tigres de San Fernando High School.

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President Goldberg modified the Order of Business to allow action on a time certain item.

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BOARD MEMBER RESOLUTIONS FOR ACTION

Ms. Gonez moved the following resolution, with a 1:15 p.m. time certain.

- Tab 11. Ms. Gonez, Ms. Ortiz Franklin, Ms. Ramirez, Dr. Rivas, Mr. Melvoin, Ms. Goldberg - Celebrating Latino Heritage Month in the Los Angeles Unified School District (Res-004-23/24) (Noticed August 22, 2023)

Whereas, The United States has observed Latino Heritage Month from September 15 to October 15 since 1988 to commemorate the contributions, heritage, achievements, and cultural influences of Latino Americans in the United States;

Whereas, Latino Heritage Month also recognizes the intersectionality and diversity of the U.S. Latino population, incorporating indigenous histories and celebrating the independence days of several Latin American countries including: Costa Rica, El Salvador, Guatemala, Honduras, and Nicaragua;

Whereas, This month-long recognition serves as an opportunity for all Americans to learn more about Latino history, promote cultural awareness and inclusivity, and celebrate diversity both in the present and in our nation's history;

Whereas, The U.S. Latino population has grown to become the second largest racial or ethnic group in the United States in the last decade, reaching 62.6 million Latinos as of 2021 and accounting for 19% of all Americans;

Whereas, The state of California is home to the largest Latino population in the country, where they comprise 40.3% of the state's overall population, and almost 50% of the population of the County of Los Angeles;

Whereas, Latino students comprise almost 78% of the Los Angeles Unified District student population, underscoring the importance and relevance of Latino Heritage Month among the District's students and families;

Whereas, Recognizing and celebrating Latino Heritage Month as a District furthers the work of our Strategic Plan to provide culturally relevant, empowering curriculum that inspires students to become leaders and advocates for their communities; and

Whereas, The District is committed, above and beyond this commemoration, to empowering students through culturally responsive and inclusive learning environments that celebrates the value and diversity of all its students; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby recognizes and celebrates September 15 through October 15 as Latino Heritage Month;

Resolved further, That the Office of the Superintendent will work to promote educational resources on Latino history, culture, and heritage and make them widely available to staff, students, and families online through the District homepage and social media accounts; and, be it finally

Resolved, That by adoption of this resolution, the Board and Superintendent hereby encourage all students, staff, and families, to commemorate and celebrate the immense historical and cultural contributions that Latino people have made and continue to make here in Los Angeles, California, and the United States.

Ms. Ortiz Franklin seconded the motion.

Remarks were heard from Ms. Gonez regarding the resolution.

Ms. Gonez introduced and recognized Cindy Montañez, Chief Executive Officer, Tree People, for her longtime advocacy for the San Fernando Valley community, and throughout the State of California.

Board Members shared remarks about Ms. Montañez.

Remarks were heard from Ms. Montañez.

The Board presented Ms. Montañez with a certificate of recognition.

After discussion and on roll call vote, the resolution was adopted, 5 ayes.

Later in the meeting, Mr. Melvoin and Ms. Gonez recorded aye votes.

The final vote was 7 ayes.

Ms. Ramirez was absent.

Later in the meeting, the following speakers addressed the Board on the resolution:

- Verenice Miron, Community Representative
- Maria Daisy Ortiz, Parent

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President Goldberg resumed the Order of Business.

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BOARD PRESIDENT'S REPORTS

LABOR PARTNERS

Adriana Salazar Avila, Teamsters, Haydee Malacas, Community Representative, and Ryan Jack, Special Education Assistant, spoke on behalf of leaders from all unions and associations that represent District employees, regarding health benefits for employees and retirees.

INDEPENDENT ANALYSIS UNIT

There was no update by the Independent Analysis Unit.

COMMITTEE CHAIR REPORTS

Mr. Schmerelson reported on the September 6, 2023 Special Education Committee.

Later in the meeting, Ms. Gonez reported on the September 7, 2023 Children and Families in Early Education Committee.

CONSENT ITEMS

Items for action below to be adopted by a single vote:

NEW BUSINESS FOR ACTION:

- Tab 1. BOARD OF EDUCATION REPORT NO. 027-23/24
Approval of Procurement Actions

Mr. McLean read the following statement:

In accordance with Regulation Section 18438.8, Board Member Melvoin is disclosing receipt of a campaign contribution in excess of \$250 from a party interested in the following contract action:

Board of Education Report No. 027 – 23/24 (Procurement Services Division)
Tab 1, Item E, Kokomo Solutions, Contract Number 4400011585
Source: Daniel Lee, Chief Executive Officer, Kokomo Solutions

Further, Board Member Melvoin is disqualified from participating in the previously stated contract action.

Superintendent Carvalho asked to withdraw Item G, Contract 4400011903.

- Tab 2. BOARD OF EDUCATION REPORT NO. 012-23/24
Approval of Facilities Contracts Actions
- Tab 3. BOARD OF EDUCATION REPORT NO. 035-23/24
Define and Approve Three Projects to Provide Critical Replacements and Upgrades of School Building/Site Systems and Components and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein
- Tab 4. BOARD OF EDUCATION REPORT NO. 036-23/24
Define and Approve Seven Board District Priority Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein
- Tab 5. BOARD OF EDUCATION REPORT NO. 037-23/24
Define and Approve the Girls Academic Leadership Academy (GALA) Campus Reconfiguration and Upgrade Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein
- Tab 6. BOARD OF EDUCATION REPORT NO. 039-23/24
Donations of Money to the District
- Tab 7. BOARD OF EDUCATION REPORT NO. 040-23/24
Report of Cash Disbursements
- Tab 8. BOARD OF EDUCATION REPORT NO. 032-23/24
Approval of Routine Personnel Actions

CORRESPONDENCE AND PETITIONS

Tab 16. Report of Correspondence (ROC-002-23/24)

MISCELLANEOUS BUSINESS

Tab 17. Minutes for Board Approval (MIN-002-23/24)

Speakers addressed the Board on the following items on the consent calendar:

Board of Education Report No. 035-23/24, Define and Approve Three Projects to Provide Critical Replacements and Upgrades of School Building/Site Systems and Components and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

- Karla Franco, Parent

Board of Education Report No. 037-23/24, Define and Approve the Girls Academic Leadership Academy (GALA) Campus Reconfiguration and Upgrade Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

- David Tokofsky, Community Representative

Board of Education Report No. 032-23/24, Approval of Routine Personnel Actions

- Theresa Sanford, Former District Employee

Remarks were heard from Board Members. District staff was asked to provide further information on the following:

Tab 1, Item H – Gold Star Foods, Inc.; Goodman Food Products, dba Don Lee Farms (SBE); Sterling BV, Inc., dba Buena Vista Foods:

Questions were raised on whether there is a contingency plan at school sites if vegan meals run out, and whether there is a demand for vegan meals.

Tab 1, Item C – Communication Brokers, Inc., dba CBI Telecommunications Consultants:

Concerns were raised regarding inequitable pricing, and whether there is specific language or terms the District should include in future contracts to ensure there are no disparities.

Tab 1, Item L – Waterline Technologies, Inc.; Knorr Systems, Inc.; Aqua Source, Inc., and Item M – Waterline Technologies, Inc.:

Questions were raised about activating an athletic program at Cortines High School; performing an analysis, specifically at Special Education Centers, looking into whether they have access to a lifeguard and can utilize the pools; reevaluating the pay for lifeguards; and, pool access for nights, weekends, and during summer.

In addition, staff will work on providing a list of schools that offer swimming classes on their Master, and a list of pools that are not in use, specifically, which are closed due to facility needs, and which are closed because there are no lifeguards.

Ms. Goldberg paused the Consent Items to allow action on a time certain item.

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President Goldberg modified the Order of Business
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BOARD MEMBER RESOLUTIONS FOR ACTION (continued)

Mr. Schmerelson moved the following resolution, with a 3:30 p.m. time certain.

- Tab 10. Mr. Schmerelson, Mr. McKenna, Dr. Rivas, Mr. Melvoin, Ms. Gonez, Ms. Ortiz Franklin, Ms. Goldberg - September as Child Welfare and Attendance Month (Res-001-23/24) (Noticed August 22, 2023)

Whereas, The Compulsory Education Act was enacted in 1903 and the Governing Board of the Los Angeles Unified School District appointed the first Attendance Officer to enforce compliance with the compulsory attendance mandate, creating the Pupil Services and Attendance Division;

Whereas, In September 2017, the National Child Welfare Workforce Institute celebrated the first National Child Welfare Workforce Development Month, and honored the hard work of child welfare professionals in improving outcomes for children, youth, and families;

Whereas, In our schools, Child Welfare and Attendance Counselors are called Pupil Services and Attendance Counselors (PSA Counselors). They focus on children's safety and wellbeing, strengthening families by providing services and referrals, and they reconnect youth to schools;

Whereas, The pandemic highlighted that our schools are severely underfunded. It also opened our eyes to the importance of supporting the whole child, their socio-emotional learning, and their mental health, making child welfare a priority;

Whereas, Absenteeism is a significant problem that caused learning loss among more than 200,000 LAUSD students during the 2021-2022 school year, as absenteeism and truancy impacts our children regardless of age, race, gender, and socioeconomic status;

Whereas, The rate for chronic absenteeism for African-American students is at 57%, for Latino students at 49%, and for homeless students at 68%;

Whereas, The National Child Welfare Workforce Development Month in September offers an opportunity to recognize and honor the work of Child Welfare and Attendance Counselors, who help vulnerable children and their families. It provides an opportunity to educate the community and policymakers about the effectiveness of truancy and dropout prevention interventions, supported by the California Legislature as outlined in the California Education Code (EC) sections 48240–48244;

Whereas, Pupil Services and Attendance Counselors are frontline professionals who are indispensable in identifying resources and fostering partnerships with community-based organizations to complement existing school programs;

Whereas, Pupil Services and Attendance Counselors conduct assessments to identify issues that may impact attendance and barriers to learning, to facilitate linkages to services that meet the needs of the whole child while simultaneously integrating multi-tiered interventions to promote overall wellness of the family, to address absenteeism, truancy and to support students of culturally diverse populations;

Whereas, Pupil Services and Attendance Counselors use data-driven solutions to identify individual student strengths and needs in order to assist with successful student learning outcomes;

Whereas, Pupil Services and Attendance Counselors increase graduation rates and prevent students from dropping out. They increase access to college pathways, link students and families to services, and provide comprehensive services to foster and homeless youth;

Whereas, Pupil Services and Attendance Counselors re-engage out-of-school youth back into an educational setting, ensuring the successful transition and re-enrollment of all students following juvenile detention;

Whereas, Pupil Services and Attendance Counselors help parents, guardians, tutors, and other heads of households by focusing on personalized pathways to further their children's educational, personal, and social growth; and

Whereas, The Association of Pupil Services and Attendance Counselors (APSAC) has declared the last Tuesday of September as the Child Welfare and Attendance (PSA) Counselor Day; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby declares the month of September 2023, as Child Welfare and Attendance Month and the last Tuesday of September as the Pupil Services and Attendance Counselors Day; and, be it finally

Resolved, That the District will continue to promote attendance awareness through District websites and social media outlets, conducting home visits, engaging families, and taking action with the Association of Pupil Services and Attendance Counselors (APSAC) to strengthen child welfare in our communities.

Ms. Gonez seconded the motion.

Remarks were heard from Mr. Schmerelson regarding the resolution.

The following speakers addressed the Board on the resolution:

- Ofelia Sofi Ryan, District employee
- Ana Vasquez, Parent

Remarks were heard from Board Members.

After discussion and on roll call vote, the resolution was adopted, 6 ayes.

Later in the meeting, Ms. Ortiz Franklin recorded an aye vote.

The final vote was 7 ayes.

Ms. Ramirez was absent.

President Goldberg resumed the Order of Business.

CONSENT ITEMS (continued)

Board members continued discussion on Tab 1 on the consent calendar.

Mr. Schmerelson moved that the Consent Items be adopted with the following amendment:

- Board of Education Report No. 027-23/24, Approval of Procurement Actions, being amended to withdraw Item G, Contract No. 4400011903

Dr. McKenna seconded the motion.

On roll call vote, the Consent Items were adopted, 6 ayes, with the following exception:

- Mr. Melvoin, abstained on Board of Education Report No. 027-23/24, Item E, Contract Number 4400011585, Kokomo Solutions.

Later in the meeting, Ms. Gonez recorded an aye vote.

The final vote was 7 ayes.

Ms. Ramirez recorded an advisory vote of aye.

Ms. Goldberg paused the New Business for Action to allow for the Public Comment time certain.

President Goldberg modified the Order of Business.

PUBLIC COMMENT

The following speakers addressed the Board on the subjects indicated:

Damien Winfrey, Student	Black Student Achievement Plan
Steven Ortega, InnerCity Struggle	Police free schools in LAUSD
Tre'niece Thomas, Student	Defund the Los Angeles School Police Department
Sahara Fisher, Student	Defund the Los Angeles School Police Department
Romy Griego, Student	Defund the Los Angeles School Police Department
Christian Flagg, Community Coalition	Black Student Achievement Plan
Alejandro Juarez, InnerCity Struggle	Latino Heritage Month, police free schools
Channing Martinez, The Strategy Center	Investing in Black students

Lakell White, Student
 Eric Mann, The Strategy Center
 Zoe Gardner, Student
 Diana Guillen, Parent
 Juan Mangandi, Parent
 Norma Gonzalez, Parent
 Monica Arrazola, Parent

More funding for Black Student Achievement Plan
 Police free schools in LAUSD
 Defund the Los Angeles School Police Department
 Support for Los Angeles School Police Department
 Support for Los Angeles School Police Department
 Support for Los Angeles School Police Department
 Support for Los Angeles School Police Department

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President Goldberg resumed the Order of Business.

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NEW BUSINESS FOR ACTION

Tab 9. BOARD OF EDUCATION REPORT NO. 033-23/24
 Provisional Internship Permits

Mr. Schmerelson moved that the report be adopted. Dr. Rivas seconded the motion.

On roll call vote, the report was adopted, 6 ayes.

Dr. McKenna was absent.

Ms. Ramirez recorded an advisory vote of aye.

BOARD MEMBER RESOLUTIONS FOR ACTION (continued)

Tab 12. Mr. Schmerelson, Dr. McKenna, - Standing With the Families of Maui by Providing Support and Resource (Res-006-23/24) (Waiver of Board Rule 72)

Mr. Schmerelson moved a waiver of Board Rule 72 to allow action on Res-006-23/24. Dr. McKenna seconded the motion, which was adopted, 7 ayes.

Ms. Ramirez recorded an advisory vote of aye.

Mr. Schmerelson moved the following amended resolution:

Mr. Schmerelson, Dr. McKenna - Standing With the Families of Maui ~~Providing~~ **and Encouraging** by Support and Resources (Res-006-23/24) (Waiver of Board Rule 72)

Whereas, The unprecedented wildfires on Maui, Hawaii have caused devastation, destruction and loss of life with Maui County reporting damage to hundreds of structures and search and rescue operations continuing for hundreds of individuals still missing;

Whereas, Both public and private schools, serving children now displaced, without homes, and traumatized, have been damaged and destroyed depriving children of what had been their safe space;

Whereas, Students and staff in the Los Angeles Unified School District have in the past

demonstrated their compassion and willingness to help those in great need;

Whereas, Many District staff and students originate from the Hawaiian Islands and have a special connection to the tragedy; and

Whereas, The District has a moral and civic obligation to teach its students the fundamental value in assisting those in need, anywhere in our world community, now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District encourages those who are able to support the Maui community and their youth as they recover and rebuild; ~~expresses the need for all to step forward to assist in any way possible and directs the Superintendent to determine how District staff and resources could be utilized to help;~~

Resolved further, ~~That the Superintendent identify a District point person for relief efforts and encourage our collective bargaining units to identify point persons to form a united assistance team;~~

Resolved further, ~~That the Superintendent Investigate the possibility of mobilizing District mental health workers and other first responders for possible deployment for purposes of training or on the ground intervention in Maui;~~

Resolved further, That the Board directs the Superintendent to seek a Los Angeles Unified- ~~arrange for a Consolidated Charitable Campaign partner to focus District staff on~~ contributions to support the recovery and rebuilding of Maui ~~recovery; and, be it finally~~

Resolved further, ~~That the Superintendent immediately communicate with all of the District's Facilities and New Construction Team Partners to investigate the possibility of assisting Maui in efforts to rebuild schools; and, be it finally-~~

Resolved, That the Board expresses its sympathies and sorrow for all impacted by the loss of life and property in this tragic event, and that we stand with students and families in rebuilding their homes, schools and communities.

Dr. McKenna seconded the motion.

Remarks were heard from Mr. Schmerelson regarding the devastating wildfires in Maui.

Remarks were heard from Dr. McKenna and Ms. Goldberg.

On roll call vote, the resolution was adopted as amended, 7 ayes.

Ms. Ramirez recorded an advisory vote of aye.

The final version of the resolution reads as follows:

Mr. Schmerelson, Dr. McKenna, Dr. Rivas, Mr. Melvoin, Ms. Gonez, Ms. Ortiz Franklin, Ms. Goldberg - Standing With the Families of Maui and Encouraging Support and Resources (Res-006-23/24) (Waiver of Board Rule 72)

Whereas, The unprecedented wildfires on Maui, Hawaii have caused devastation, destruction

and loss of life with Maui County reporting damage to hundreds of structures and search and rescue operations continuing for hundreds of individuals still missing;

Whereas, Both public and private schools, serving children now displaced, without homes, and traumatized, have been damaged and destroyed depriving children of what had been their safe space;

Whereas, Students and staff in the Los Angeles Unified School District have in the past demonstrated their compassion and willingness to help those in great need;

Whereas, Many District staff and students originate from the Hawaiian Islands and have a special connection to the tragedy; and

Whereas, The District has a moral and civic obligation to teach its students the fundamental value in assisting those in need, anywhere in our world community, now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District encourages those who are able to support the Maui community and their youth as they recover and rebuild;_

Resolved further, That the Board directs the Superintendent to seek a Los Angeles Unified Consolidated Charitable Campaign partner to focus on contributions to support the recovery and rebuilding of Maui; and, be it finally

Resolved, That the Board expresses its sympathies and sorrow for all impacted by the loss of life and property in this tragic event, and that we stand with students and families in rebuilding their homes, schools and communities.

BOARD MEMBER RESOLUTIONS FOR INITIAL ANNOUNCEMENT

The following resolutions will be for action at the October 17, 2023 Regular Board Meeting:

Tab 13. Mr. Schmerelson - October as National Principals Month (Res-007-23/24)

Whereas, In acknowledgment of October as National Principals Month, the Los Angeles Unified School District recognizes all principals who serve the students of the District as well as the organizations that support students and schools, the Associated Administrators of Los Angeles (AALA) and the Association of California School Administrators (ACSA) Region 16;

Whereas, We commend the work of our exceptional site leaders and their day-to-day efforts to ensure that our students have the most significant opportunities, the most influential educators, and the strongest, safest learning environments;

Whereas, Principals establish positive school climate and maintain relationships with students, parents, teachers and school personnel, the community and others to create academic excellence for children in a safe, healthy and supportive school environment;

Whereas, We celebrate National Principals Month this October, we thank our principals for

being at the forefront of educational equity and improving student achievement for all students, especially our most vulnerable students;

Whereas, We thank AALA for uplifting our administrators' voices, skills, and passion to advocate for our students. We appreciate ACSA Region 16's commitment to and dedication in the development and support of inspired educational leaders who meet the diverse needs of all our students;

Whereas, We acknowledge our partnership with AALA as both the union and professional association for their work in helping ensure that we have the most effective leaders and highest quality of leadership at our school sites. We extend our deepest appreciation for their continued advocacy to ensure our principals receive the support and guidance they need to be successful front-line leaders; and

Whereas, Honoring the contribution of all school principals and assistant principals at all grade levels to the success of students in the District's early education, elementary, secondary and adult and Career and Transition Center schools; and to encourage residents of California to observe "National Principals Month" with appropriate ceremonies and activities that promote awareness of school leadership's role in that every child has access to a high-quality education; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District hereby proclaims the month of October 2023 as National Principals Month, but every day of every month we recognize, commend, and appreciate our principals for being the frontline leaders who are the heart, soul, and backbone of our District family.

Tab 14. Mr. Schmerelson - Celebrating October as Filipino Heritage Month (Res-008-23/24)

Whereas, Filipinos contributed to the progression of the cultural, intellectual, political, and economic life in the United States and the Los Angeles Unified School District;

Whereas, There are an estimated 4 million Filipino-Americans residing in the United States, making them the second-largest Asian-American population within the country and the third-largest ethnic group in California;

Whereas, Historic Filipinotown is located in Los Angeles and is a central part of The City of Los Angeles with a rich history and culture;

Whereas, 1.6 percent of students in the District identify as Filipino or of Filipino descent;

Whereas, In October 1587, the first Filipinos arrived in the United States in what is now Morro Bay, California;

Whereas, October is the birth month of influential Filipino-American labor leader, Larry Itliong;

Whereas, October was declared Filipino Heritage Month in California and Hawaii in 1988; and

Whereas, The California Department of Education officially recognized October as Filipino Heritage Month in 2006; now, therefore, be it

Resolved, That the Los Angeles Unified School District will declare October 2023 as Filipino Heritage and History Month;

Resolved further, That the Superintendent's office explore the possibility of establishing a lesson plan on the history of Historic Filipinotown and important Filipino figures in Los Angeles as well as creating a dual language program in the Filipino language; and, be it finally,

Resolved, That the District will work with all LAUSD schools to accurately and positively celebrate Filipino history and heritage.

Tab 15. Mr. Schmerelson - Dyslexia Awareness Month (Res-009-23/24)

Whereas, Dyslexia is a language-based disability that exists on a continuum and is characterized by difficulties in learning how to read fluently. Students with dyslexia can also experience difficulties with oral language, spelling, writing skills, and math computation. It is estimated that dyslexia affects as many as one in five individuals;

Whereas, Dyslexia contributes to challenges in reading fluency and decoding, meanwhile strengths in higher-level cognitive functions, such as critical thinking, reasoning, and problem-solving;

Whereas, Scientific advancement in understanding dyslexia has improved to know of the neurological and epidemiological basis;

Whereas, Early screening for reading difficulties including dyslexia is critical to ensure individuals receive focused, evidence-based intervention allowing the promotion of self-awareness and self-empowerment and the provision of necessary accommodations to ensure school and life success;

Whereas, In July 2023, Governor Gavin Newsom signed into law SB 114, creating a new requirement in Education Code section 53008 which mandates, starting in the 2025-2026 school year, all kindergarten through 2nd grade California students to be screened for reading difficulties including dyslexia and apply early intervention methods for any student identified at risk for reading difficulties, including difficulties associated with characteristics of dyslexia;

Whereas, The California State Parent Teacher Association (PTA) adopted a resolution at its 2016 annual convention that recognizes dyslexia has significant educational implications that need to be better addressed by public schools and school districts; and

Whereas, The Governing Board of the Los Angeles Unified School District, passed the resolution Recognizing and Addressing the Educational Implications of Dyslexia in LAUSD Schools (Res-101-16/17), which addresses plans to be developed that will 1) ensure policies, procedures, and practices are aligned to the provisions of state legislation program guidelines pursuant to Education Code section 56335 and 2) provide teacher and staff training necessary to improve the understanding of dyslexia and its warning signs, appropriate evidence-based

structured literacy instruction, and appropriate classroom accommodations and modifications; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District recognizes that dyslexia has significant educational implications that must be addressed, and designates October 2023 as Dyslexia Awareness Month;

Resolved further, That the Board will direct the Superintendent to utilize resources from the Division of Instruction to conduct community outreach regarding the State's mandate to screen for reading difficulties including dyslexia; and, be it finally

Resolved, That the Parent Center will dedicate the month of October to educate parents by dispelling the myths of dyslexia and ensuring that students receive the services and support they need to learn to read.

ADJOURNMENT

Mr. Schmerelson moved that the meeting be adjourned in memory of Mr. Robert Francis Bob Miller, former Belmont High School Teacher.

The meeting adjourned at 5:12 p.m.

APPROVED BY THE BOARD:

MS. JACKIE GOLDBERG
PRESIDENT

MR. MICHAEL MCLEAN
EXECUTIVE OFFICER OF THE BOARD

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
GOVERNING BOARD OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT

REGULAR BOARD MEETING MINUTES
 333 South Beaudry Avenue, Board Room
 1:00 p.m., Tuesday, September 26, 2023

The Los Angeles Board of Education acting as the Governing Board of the Los Angeles Unified School District met in regular session on Tuesday, September 26, 2023, at the Administrative Offices, Board Room, 333 South Beaudry Avenue, Los Angeles, California.

Mr. Michael McLean, Executive Officer of the Board, called the meeting to order at 2:04 p.m.

The following Board Members were present: Dr. George McKenna, Dr. Rocio Rivas, Mr. Scott Schmerelson, Mr. Nick Melvoin, Ms. Kelly Gonez, and Board President Jackie Goldberg.

Ms. Tanya Ortiz Franklin arrived at 2:16 p.m.

Ms. Karen Ramirez, Student Board Member, was present.

Superintendent Alberto Carvalho was present.

Elisa Flores, Student, Euclid Avenue Elementary School, Board District 2, led the Pledge of Allegiance.

BOARD PRESIDENT'S REPORT

Board President Goldberg presented a Proclamation that asked the Board of Education to recognize September 26, 2023, as Kathryn L. Kurka Day. She briefly shared an overview of Ms. Kurka's career. Karen Maiorca and Maria Reza thanked the Board for recognizing Ms. Kurka and shared a short video highlighting the Kurka Children's Health Fund.

LABOR PARTNERS

Mr. Nery Paiz, President, Associated Administrators of Los Angeles (AALA), Ms. Gloria Martinez, United Teachers of Los Angeles (UTLA), and Mr. Fernando Chavez (UTLA) briefly spoke in support of the resolution - Creating a Charter Schools Co-Location Policy to Mitigate Impacts Caused by Proposition 39 (Res-026-22/23).

COMMITTEE REPORTS

Mr. Schmerelson reported on the September 19, 2023, Committee of the Whole meeting.

Dr. Rivas reported on the September 20, 2023, Greening Schools and Climate Resilience Committee meeting.

Ms. Ortiz Franklin reported on the September 21, 2023, Safety and School Climate Committee meeting.

Board President Goldberg modified the Order of Business.

NEW BUSINESS FOR ACTION

Tab 4: BOARD OF EDUCATION REPORT NO. 051-23/24
Rescission of the LAUSD Vaccination Mandate Requirement

The following speakers addressed the Board:

- Ian Jameson
- Theresa Sanford
- Elizabeth Robles
- Jennifer Kennedy
- Vince Nineli
- Karla Franco
- Ray

Superintendent Carvalho shared brief remarks regarding his recommendation of the Rescission of the LAUSD Vaccination Mandate Requirement.

Dr. Smita Malhotra, Chief Medical Officer, Dr. Vlad Manuel, UCLA, and Mr. Frank Serrato, Chief Human Resources Officer, shared a brief presentation on the proposed Rescission of the LAUSD Vaccination Mandate Requirement.

Mr. Schmerelson moved to adopt the item. Ms. Ortiz Franklin seconded the motion.

Remarks were heard from Board Members.

After discussion and on roll call vote, the item was adopted. The vote was 6 ayes, 1 no, Dr. McKenna.

Ms. Ramirez recorded an advisory vote of abstention.

Board Member Resolution for Action:

Board Member Schmerelson assumed the chair

Tab 6: RESOLUTION NO. 026-23/24
 Ms. Goldberg, Dr. Rivas – Creating a Charter Schools Co-Location Policy to Mitigate Impacts Caused by Proposition 39

The following speakers addressed the Board:

- Karla Griego
- Ohmagan Khan
- Lorenza Rangal Yarns
- Mark Kraus
- Nicole Duquette
- Pedro Rodriguez
- Adrian Sandoval
- Antonieta Garcia

Ms. Goldberg moved version 2 of the resolution. Ms. Rivas seconded the motion.

Ms. Goldberg clarified the purpose of the resolution.

Ms. Gonez moved the following amendment to the resolution:

Resolved, That the Superintendent shall seek community input, including from parents, students, educators, labor partners and independent charter school representatives, and report back to the Board in 90 days with a Proposition 39 Charter Schools Co-Location Policy (Policy) for potential Board adoption that, as operationally feasible and permitted by law:

1. Preserves District schools' programmatic spaces that are essential to enriching instruction and student health/human services; potential examples include music rooms, robotics labs and maker spaces, computer labs, contractually required spaces for itinerant staff to perform their work and provide direct services to students, intervention rooms (classrooms dedicated to regular and articulated academic intervention services for struggling students), parent centers, and spaces dedicated to necessary components of Community Schools, Priority Schools and BSAP Schools;
2. Improves existing processes to immediately address student safety issues and maintains student safety as the foremost consideration when determining site offers and space configurations;
3. Provides for ongoing tracking of and accountability in response to instances of repeated and significant overestimated in-district ADA that results in overallocation of space;
4. Evaluates and modifies or removes existing District policies that create unnecessary barriers to charters expeditiously moving off of co-located campuses;
5. Explores and puts forward options for Board consideration of multi-year, non-Prop 39 shared facilities agreements, lease, license, joint use, and joint occupancy at appropriate co-located campuses or underutilized/vacant space which adhere to the above-mentioned stipulations;
6. Allocates up to \$5M annually in bond funds for facilities investments at co-located District schools to ensure equity in facilities conditions and amenities, such as the painting of classrooms, new classroom furniture, and technology, as appropriate;
7. Improves the efficacy of collaboration between co-located schools and the sharing of best practices across charter and District schools; and

8. Evaluates the need for additional administrative and operational support at co-located District campuses, such as the dedication of additional campus aides, office staff, assistant principals, or stipends for such existing personnel to provide for the additional responsibilities necessitated by co-locations;

Resolved further, That the policy on preserving District programmatic spaces (#1 above) shall only guide District decisions related to co-location requests where the charter has not previously occupied a specific campus and shall also be applied whenever existing colocations change due to material revisions that expand grade levels or increase enrollment capacity;

~~Resolved, That the Superintendent shall report back to the Committee of the Whole in 90-45 days with a Proposition 39 Charter Schools Co-Location Policy (Policy) recommended for adoption by the Governing Board of the Los Angeles Unified School District;~~

~~Resolved further, That the Policy, as operationally feasible and permitted by law, shall enumerate clear guidelines that: prohibit co-locations on the District's 100 Priority Schools, prohibit grade span arrangements that negatively impact student safety and build charter school pipelines that actively deter students from attending district schools, prohibit co-locations on schools with special programs such as BSAP, and Community Schools, and prevent co-locations that compromise schools' capacity to serve neighborhood kids, as operationally feasible and permitted by law, avoid Proposition 39 co-locations that: (1) are on school sites with the District's 100 Priority Schools, BSAP schools, and Community Schools, (2) compromise District schools' capacity to serve neighborhood children, and/or (3) result in grade span arrangements that negatively impact student safety and build charter school pipelines that actively deter students from attending District schools, all so that the District can focus on supporting its most fragile students and schools, key programs, and student safety;~~

~~Resolved further, That the Policy shall guide District decisions related to all new school co-location requests and shall also be applied whenever existing co-locations change, for reasons including, but not limited to insufficient space, addition of grade levels, and other material revisions to their charter;~~

Resolved further, That the Policy shall, **as permitted by law**, modify ~~the District's existing Proposition 39~~ practices to **require ensure the following**: more robust information-gathering, including a site visit to the ~~District~~ school before recommending a co-locations, ~~require improved and more frequent~~ verification of charter **schools'** average daily attendance, ~~create Board oversight of a Board vote on the approval of all Alternate Agreements,~~ and **improve** monitoring, **enforcement**, and reporting of charter **schools'** payment of co-location fees **facilities costs** and ~~overall location fees~~ **overallocated space reimbursements**;

Resolved, That the Superintendent shall report back in 90 days with a clear plan and timeline for the creation of a redesigned Charter Schools Division page on the district's website or a standalone website which, in addition to its current content, will provide a clearinghouse to the public for information about charter schools, including charter petitions, co-location requests and offers, reports to the Board, Local Control and Accountability Plans, average daily attendance reports, and other relevant data.

Ms. Ortiz Franklin seconded the motion.

Ms. Goldberg and Dr. Rivas rejected the amendment as friendly.

Remarks were heard from Board Members and staff.

Ms. Gonez clarified that the amendment maintains the Whereas sections of the resolution and only amends the Resolved section of the resolution.

After discussion and on roll call vote, the amendment failed. 3 ayes, 4 noes, Dr. McKenna, Ms. Goldberg, Dr. Rivas, Mr. Schmerelson.

Student Board Member Ramirez recorded an advisory vote of no.

Ms. Goldberg moved the following amendment:

Resolved, That the Policy should clarify the definition of an empty classroom for the purposes of co-location, and preserve District schools' programmatic spaces that are essential to enriching instruction and student health and human services; potential examples include music rooms, robotics labs, and maker spaces, computer labs, contractually required spaces for itinerant staff to perform their work and provide direct services to students, intervention rooms (classrooms dedicated to regular and articulated academic intervention services for struggling students), and parent centers.

Dr. Rivas seconded the motion.

Remarks were heard from Board Members and staff.

Ms. Goldberg and Dr. Rivas accepted the amendment as friendly.

Dr. Rivas called the question on Res-026-23/24. Ms. Goldberg seconded the motion.

Dr. Rivas withdrew her call to the question -- to suspend all discussion on the item.

After discussion and on roll call vote, the amendment was adopted. The vote was 4 ayes, 2 noes, Mr. Melvoin, and. Ms. Ortiz Franklin. Later in the meeting Ms. Gonez recorded an abstention.

The final resolution reads as follows:

Whereas, It is the responsibility of the Governing Board of the Los Angeles Unified School District to ensure the best possible learning environment for our students, which includes a commitment to continuous evaluation and improvement of existing practices, policies, and procedures, including those relating to the District's Proposition 39 compliance efforts and resulting impacts caused by co-locations;

Whereas, The co-location of charter schools, pursuant to Proposition 39, is often detrimental to District schools and the students they educate, and has a tangible negative impact on the District's ability to maintain and grow important priorities including, but not limited to, Black Student Achievement Program (BSAP), Priority Schools, and Community Schools; now, therefore, be it

Resolved, That the Superintendent shall report back to the Committee of the Whole in ~~90~~ 45 days with a Proposition 39 Charter Schools Co-Location Policy (Policy) recommended for adoption by the Governing Board of the Los Angeles Unified School District;

Resolved further, That the Policy, as operationally feasible and permitted by law, shall enumerate clear guidelines that avoid Proposition 39 co-locations that: (1) are on school sites with the District's 100 Priority Schools, BSAP schools, and Community Schools, (2) compromise District schools' capacity to serve neighborhood children, and/or (3) result in grade span arrangements that negatively impact student safety and build charter school pipelines that actively deter students from attending District schools, all so that the District can focus on supporting its most fragile students and schools, key programs, and student safety;

Resolved, That the Policy should clarify the definition of an empty classroom for the purposes of co-location, and preserve District schools' programmatic spaces that are essential to enriching instruction and student health and human services; potential examples include music rooms, robotics labs, and maker spaces, computer labs, contractually required spaces for itinerant staff to perform their work and provide direct services to students, intervention rooms (classrooms dedicated to regular and articulated academic intervention services for struggling students), and parent centers.

Resolved further, That the Policy shall guide District decisions related to all new school co-location requests and shall also be applied whenever existing co-locations change, for reasons including, but not limited to insufficient space, addition of grade levels, and other material revisions to their charter;

Resolved further, That the Policy shall, as permitted by law, modify the District's existing Proposition 39 practices to ensure the following: more robust information-gathering, including a site visit to the District school before recommending a co-location, more frequent verification of charter schools' average daily attendance, a Board vote on the approval of all Alternate Agreements, and monitoring, enforcement, and reporting of charter schools' payment of facilities costs and overallocated space reimbursements;

Resolved further, That the District's annual preliminary co-location proposals, final offers, and Alternative Agreements should all be accompanied by a report to the Board on how the Policy was adhered to in the process; and, be it finally

Resolved, That the Superintendent shall report back in 90 days with a clear plan and timeline for the creation of a redesigned Charter Schools Division page on the district's website or a standalone website which, in addition to its current content, will provide a clearinghouse to the public for information about charter schools, including charter petitions, co-location requests and offers, reports to the Board, Local Control and Accountability Plans, average daily attendance reports, and other relevant data.

Board President Goldberg resumed the chair and the Order of Business.

CONSENT ITEMS

Items for action below to be adopted by single vote:

NEW BUSINESS FOR ACTION:

Tab 1: BOARD OF EDUCATION REPORT NO. 050-23/24
Accounting and Disbursement Division
(Unaudited Actuals Report for Fiscal Year 2022-23; Gann Limit Resolution - Public Hearing; and Closure of the State School Building Lease-Purchase Fund) Recommends approval of the Unaudited Actuals Report for Fiscal Year 2022-23 (Attachment A) and directs staff to submit the Report to the County Superintendent of Schools as required by Ed Code; adoption of the Gann Limit Resolution as required under Ed Code Section 42132 (Attachment B); approval of the board resolution for the closure of State School Building Lease-Purchase (SSBLP) Fund 300-7710 (Attachment C); and, approval of the enclosed Resolution to Commit Fund Balance for specific use of programs that meet various obligations and compensation (Attachment D).

Later in the meeting, Mr. McLean read the public hearing statement.

Tab 2: BOARD OF EDUCATION REPORT NO. 054-23/24
Human Resources Division
(Approval of Routine Personnel Actions) Recommends approval of 6,841 routine personnel actions (including, but not limited to, elections, promotions, transfers, leaves, terminations, etc.)

Tab 5: BOARD OF EDUCATION REPORT NO. 052-23/24
Beyond the Bell
Division of Instruction
(Tobacco-Use Prevention Education (TUPE) Tier 2 from the California Department of Education (CDE)) Recommends approval to accept TUPE Tier 2 Grant from the CDE in the amount of \$1,786,028 for the 2023-24 school year, for an estimated total of \$5,358,084 over a three-year period.

RESOLUTION REQUESTED BY THE SUPERINTENDENT

- Tab 7: Appointment of Member to School Construction Bond Citizens' Oversight Committee (Sup-Res 002-23/24)
 Resolved, That the Governing Board of the Los Angeles Unified School District ratifies the appointment of Ms. Aleigh Lewis, representing the City of Los Angeles Controller's Office, as Member to the School Construction Bond Citizens' Oversight Committee for a two-year term commencing immediately and determines that Ms. Lewis is not an employee, official, vendor, contractor, or consultant of the District.

NEW BUSINESS FOR ACTION CONTINUED:

- Tab 8: BOARD OF EDUCATION REPORT NO. 030-23/24
 Division of Instruction
 Integrated Library & Textbook Support Services (ILTSS)
 (Textbooks and Instructional Materials Certification Resolution) Recommends adoption of the attached resolution certifying the sufficiency of textbooks and instructional materials in the core and required subject areas.

Later in the meeting. Mr. McLean read the public hearing statement.

PUBLIC COMMENT

The following speaker addressed the Board:

- Maria Luisa Palma, Parent Committees
- Jade, Student, Westchester High School Co-Location
- Madison Rodriguez, Student, Westchester High School Co-Location
- Richard Thomas, New Horizons Academy, Co-Location
- Shauna Draxton, Executive Director, Wish Community & Academy Schools, Co-Location
- Alberta Moore, Parent, Safe Passage for Students, Parent Engagement
- Vanesa Garza, Founding Principal, GALs, Co-Location
- Antonia Montes, RSP Teacher, Eastman Elementary School, Co-Location
- Eric White, Parent, Reclaim Our Schools LA
- Diana Guillen, Parent, Co-Location
- Norma Gonzales, Parent, In Support of School Police on Campus
- Erin Mann, Co-Location

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President Goldberg resumed the Order of Business.

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Mr. McLean read the following Public Hearing Statements:

- Before action is taken on Board Report No. 050-23/24, Unaudited Actuals Report for Fiscal Year 2022-23 and Gann Limit Resolution, a public hearing must be held.

This constitutes a public hearing on Report No. 050-23/24, Unaudited Actuals Report for Fiscal Year 2022-23 and Gann Limit Resolution, and a maximum of 12 individuals who wish to address the Board on the item will be heard. Those who wish to speak should sign-up in the rear of the Board Room. Speakers will be called by name.

- Before action is taken on Board Report No. 030-23/24, Textbooks and Instructional Materials Certification Resolution, a public hearing must be held.

This constitutes a public hearing on Report No. 030-22/23, Textbooks and Instructional Materials Certification Resolution, and a maximum of 12 individuals who wish to address the Board on the item will be heard. Those who wish to speak should sign-up online. Speakers will be called by name.

CONSENT ITEMS Continued

The following speakers addressed the Board on consent items:

Tab 1: Board of Education Report No. 050-23/24
Accounting and Disbursement Division (Unaudited Actuals Report for Fiscal Year 2022-23; Gann Limit Resolution - Public Hearing; and Closure of the State School Building Lease-Purchase Fund)

- Maria Daisy Ortiz
- David Tokofsy

Tab 2: Board of Education Report No. 054-23/24
Human Resources Division (Approval of Routine Personnel Actions)

- Yvette Price
- Rosalba
- Leticia Pepper
- Jason Knopke

Tab 5: Board of Education Report No. 052-23/24
Beyond the Bell Division of Instruction (Tobacco-Use Prevention Education (TUPE))

- David Tokofsky

Tab 7: Appointment of Member to School Construction Bond Citizens' Oversight Committee (Sup-Res 002-23/24)

- Keith Dell'Aquila

Tab 8: Board of Education Report No. 030-23/24
Division of Instruction Integrated Library & Textbook Support Services (ILTSS)
(Textbooks and Instructional Materials Certification Resolution)

- Maria Daisy Ortiz
- David Tokofsky

Remarks were heard from Board Members and staff.

Mr. Melvoin moved that the Consent Items be adopted. Mr. Schmerelson seconded the motion.

After discussion and on roll call vote, the Consent Items were adopted. The vote was 7 ayes.

NEW BUSINESS FOR ACTION CONTINUED:

Mr. Melvoin moved the following item:

Tab 3: BOARD OF EDUCATION REPORT NO. 061-23/24
 Human Resources Division
 (Provisional Internship Permits) Recommends approval of the continuing employment of 46 teachers under the Provisional Internship Permit requirements, allowing the District to continue to staff subject field shortage classrooms.

Mr. Schmerelson seconded the motion.

After discussion and on roll call vote, the item was adopted. The vote was 7 ayes.

ADJOURNMENT

Ms. Gonez asked the Board to adjourn the meeting in memory of Board District 6 Campus Assistant Rosalinda Broussard.

On motion by Dr. Rivas, seconded by Mr. Melvoin, and by general consent, the meeting was adjourned at 7:23 p.m.

APPROVED BY THE BOARD:

JACKIE GOLDBERG
 PRESIDENT

MICHAEL MCLEAN
 EXECUTIVE OFFICER OF THE BOARD

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